

Revivor of the Report of the Master of the Rolls, Phillips, and the Decree of my Lord Chancellor: the High Commissioners have sometimes a Commission of Review, but it is very rare: and that is a Commission of Grace, not of Right: such a Review is presented unto his majesty by Wraynham, in which he deals not like a petitioner, but like a censurer, censuring every man that deals in the cause.

Mark how the Common Law sets forth a petitioner: it gives no ill words, it toucheth not men of injustice; for take this from me, that what grief soever a man hath, ill words work no good; and learned counsel never use them. And therefore the petitioner at the Common Law, is, 'Si placet majestati,' &c. 'et quod justitia et rectum fiat,' &c. Now in your Petition, see whether you have behaved yourself well: first, you make your major proposition; The unjust sentence of a Judge, is far worse than a particular murder: then your minor is, That my Lord Chancellor hath satisfied his majesty, that I have informed him falsely; but his majesty knoweth, that he that judgeth unjustly, must, to maintain it, speak untruly; and that your lordships and all logicians know, the conclusion followeth necessarily.—First, he chargeth my Lord Chancellor with injustice, not complaining of any particular to be referred to examination; but saith in general, 'He hath done unjustly, and is worse than a murderer; and that he hath informed the king falsely.'

My Lords; You know, if a man put false metal into the king's coin, it is treason; and if my Lord Chancellor shall infuse poison and false information into the king's ear, it was an heinous offence. Yet this contents not Wraynham; but he flieth at all, saying, 'That the height of authority maketh men presume.' And hath a place of Scripture in his Book, 'Woe be to them that write wicked Decrees; and in another place he saith, 'Oppression is palliated with wit and eloquence.' My Lords, ought these things to be in a petitioner? A petitioner must go meekly and humbly to work, without shew of touch of any man.

I will not omit a dead man; for, though spoken of him, it is a living fault. As for this Master of the Rolls, never man in England was more excellent for the Chancery than that man; and for aught I heard, (that had reason to hear something of him) I never heard him taxed of corruption, being a man of excellent dexterity, diligent, early in the morning, ready to do justice: for him to be taxed in such a high degree, as to omit some of the material proofs, to shift off others, to wrest the equity of the cause, and such-like: and in another place, 'That the Master of the Rolls made an unjust and corrupt gloss upon a false text,' &c.' And in another place, he saith, 'That sir Edward Phillips's report was raised *ab inferno*.'

My Lords; You know that the slander of a dead man is punishable in this court, as Lewis Pickering is able to tell you, whom I caused

here to be censured for a slander against an Archbishop that is dead; for justice lives, though the party be dead: and such slanders do wrong the living posterity and alliance of the man deceased. But Mr. Wraynham spares not the king himself; for in one place of his Book he saith, 'assurgat rex,' &c. as if the king slept. And in another place he saith, 'That the Decree is reversed without precedent.' But that is not so, as I will satisfy you anon.

For Mr. Wraynham's censure, I will never judge a man without authority and reason: 18 E. 1, in Rotulo Parliament 3, my Lord-Abbot there complained that Solomon of Wragg, and Hugh Courtney then Chief-Justice, had confederated to give judgment against the Abbot. And the king answered, 'Shall we, upon this petition, call a judgment in question?' And in the end, the answer is, 'Rex rogabit, et aliter facere non potest per legem terræ.' And my Lord-Abbot, because he was a lord, escaped punishment at that time.

Another precedent I will shew you, is, Mich. 18 E. 3, Rot. 151, *coram Rege*. Thomas Wilbraham petitioned against the Justices of the King's-bench, 'That they had not done according to law and reason.' And the petition was delivered to the representative body of the king and his council; for the which the said Wilbraham was indicted, convicted, fined, and ransomed in the King's-bench.—19 Ass. p. 3, Between sir William Scott and Humphrey Hunney, who complained to king Edw. 3. 'That sir William Scott, Chief-Justice, had awarded an assize contrary to law.' And the king sent it to the Judges; whereupon Hunney was imprisoned, judged, fined, and ransomed: yet he had no remedy but in parliament.

The Statute hath made a sharp law against such as speak scandalous news of the Chancellor, justice of the King's-bench, &c. And because divers were punished for slanders, in petitions to his majesty; therefore, 13 R. 2, rot. parl. numb. 45, the commons desired they might not be troubled for any matter that should be contained in petitions to the king: and the king answered, 'Let every man complain, so it be with law and reason.'

Wraynham objected a place of Scripture for himself, where the Psalmist saith, 'I have said in my fury, that all men are liars.' The text is, 'Dixi in excéssu:' so Wraynham saith, 'It was not in his fury, but in his excess.'—And another thing that Wraynham offered in his defence, was the king's words, where he saith, in his Book, 'Be hold to complain.' But of what? Of corruption? So likewise, in Rot. Parl. 24 Edw. 3, parl. 3, numb. 16. 'If any man mix corruption with his censures, *Anathema sit*.' So likewise it is extant in the Rolls of the Parliament *de la plbe*, that the great de la Pole was convicted of bribery, and put from his place; and Cardinal Wolsey was convicted of a foul corruption.

But if a man, according to sincerity, give judgment, though he differ from another Judge, this is no injustice. Famous Dyer gave judg-